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Case Number: 26NNCV01241 Hearing Date: July 30, 2026 Dept: E

Case No:

26NNCV01241

Hearing Date: 07/30/2026 – 8:30 a.m.

Trial

Date: UNSET

Case Name: OMayra Mangual v. Bank of America, N.A.; Loss and Prevention Services; and Coastline Recovery Services

[Tentative Ruling on
Demurrer]

Relief Requested

Defendants

– (1) Bank of America, N.A., (2) Loss and Prevention Services, and (3) Coastline Recovery Services – demur to the First Amended Complaint (FAC), and each cause of action therein, pursuant to CCP §§ 430.10(e) [failure to state facts sufficient to constitute a cause of action] and 430.10(f) [pleading is uncertain/ambiguous/unintelligible].

Procedural

Moving Party: Defendants

– (1) Bank of America, N.A., (2) Loss and Prevention Services, and (3) Coastline Recovery Services (Defendants)

Responding Party: Plaintiff, Omayra Mangual

Moving Papers: Notice/Demurrer; Request for Judicial
Notice; Declaration Jessica E. James; Proposed Order

Opposition Papers: Opposition;
Opposition to Request for Judicial Notice; Proposed Order; Declaration Omayra
Mangual

Reply Papers: Reply

Sur-Reply: Plaintiff's Notice of New
Evidence and Supplemental Declaration [filed 7/10/2026]

Post-7/16/2026 Hearing Papers:
Plaintiff's Supplemental Declaration [filed 7/21/2026]

Post-7/16/2026 Hearing Papers: Defendants'
Supplemental Declaration [filed 7/23/2026]

Proof of Service Timely Filed (CRC,
Rule 3.1300(c)): Ok

16/21 Court Days Lapsed (CCP, § 1005(b)): Ok

Proper Address (CCP, § 1013, § 1013a, § 1013b): Yes/No – Defendants served the moving papers via mail and electronic mail. The mailing address that Defendants served Plaintiff at matches the mailing address that Plaintiff lists on eCourt. However, with respect to Defendants serving the moving papers via email to Plaintiff at , the Court notes that eCourt indicates that Plaintiff's email address is . Ultimately, this discrepancy with respect to Plaintiff's email addresses does not appear to be a problem here because Plaintiff submitted an opposition. However, at the hearing, Plaintiff is to address if the email address she has listed on eCourt – – is the proper email address for service of Plaintiff.

Meet and Confer

A party filing a demurrer "shall meet and confer

in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP, § 430.41(a).)

“The parties shall meet and confer at least five days before the date the responsive pleading is due. If the parties are not able to meet and confer at least five days prior to the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer.” (CCP, § 430.41(a)(2).)

Failure to sufficiently

meet and confer is not grounds to overrule or sustain a demurrer. (CCP, § 430.41(a)(4).)

Here, in the Court’s

7/16/2026 Minute Order, the Court explained how the parties did not sufficiently meet and confer. Therefore, at the 7/16/2026 hearing, the Court ordered the parties to meet and confer telephonically, and the Court continued the demurrer hearing to 7/30/2026.

Jessica E. James

(Defendants’ counsel) filed a supplemental declaration on 7/23/2026 explaining that the parties met and conferred; however, they were unable to reach an agreement.

Plaintiff filed a

supplemental declaration on 7/21/2026; however, this supplemental declaration does not address the issue of the meet and confer. Plaintiff’s 7/21/2026 supplemental declaration appears to be an improper sur-reply that attempts to attack issues that are allegedly brought up in Defendant’s demurrer.

BACKGROUND

In general, Plaintiff’s action appears to stem from allegations that Defendants wrongfully repossessed Plaintiff’s vehicle.

Plaintiff, Omayra Mangual, filed a verified petition on 2/20/2026.

On 5/8/2026, Defendants’ demurrer was sustained, and Plaintiff’s

motion for leave to file a first amended complaint was granted.

eCourt indicates that Plaintiff's First Amended Verified Complaint (FAC) was filed on 5/8/2026; however, a stamp on the FAC indicates that it was received on 4/20/2026.

Plaintiff's FAC is brought against Defendants – (1) Bank of America, N.A.; (2) Loss and Prevention Services; and (3) Coastline Recovery Services.

The caption on the first page of Plaintiff's FAC is difficult to decipher with respect to the causes of action the Plaintiff may, or may not, be bringing against Defendants.

The body of Plaintiff's FAC is more comprehensible with respect to the causes of action Plaintiff is bringing against Defendants.

The first cause of action is labeled as a claim for Conversion and Wrongful Possession of Vehicle, and the third cause of action is labeled as a claim for Violation of the Rosenthal Fair Debt Collection Practices Act (California Civil Code section 1788.17 and related provisions). These claims are brought against all Defendants.

The second cause of action is labeled as a claim for Violation of California Civil Code section 2983.2 and California Commercial code sections 9611, 9613, 3603(b) and 9614; the fifth cause of action is labeled as a claim for Conversion of Payment Instruments and Related Funds; the sixth cause of action is labeled as a claim for Violation of the Unfair Competition Law (Business and Professions Code sections 17200 and 17204). These claims are brought against Bank of America.

The fourth cause of action is labeled as a claim for Violation of Title 15 United States Code section 1692f(6) and is brought against "Loss and Prevention Services, Coastline Recovery Services, and Bank of America to the extent applicable."

Overall, Plaintiff's FAC is not the model of clarity; it is somewhat difficult to comprehend.

Plaintiff alleges that this action concerns two related Bank of

America accounts: (A) a vehicle finance account for a 2021 Kia Forte, and (B) a Bank of America credit-card account. (FAC, ¶ 7.)

Plaintiff alleges that Defendant, Bank of America, N.A. (BANA) is a financial institution and was the holder, servicer, collector, and repossession-ordering party for the vehicle finance account and the credit card account. (FAC, ¶ 2.)

Plaintiff alleges that Defendant, Loss and Prevention Services, is a non-affiliate third party entity that acted as an intermediary forwarding agent in connection with the repossession of Plaintiff's vehicle. (FAC, ¶ 3.)

Plaintiff alleges that Defendant, Coastline Recovery Services, is a repossession non-affiliate third party company that physically repossessed Plaintiff's vehicle. (FAC, ¶ 4.)

Plaintiff's FAC makes a number of confusing allegations about presentments, correspondence, an intent to sue, and complaints to the Consumer Financial Protection Bureau. (FAC, ¶ 8-12.)

Ultimately, Plaintiff alleges that on February 13, 2026, Coastline Recovery Services, acting on instructions that originated from Bank of America through Loss and Prevention Services, repossessed Plaintiff's vehicle. (FAC, ¶ 13.)

Plaintiff further alleges that on February 16, 2026, BANA sent a defective notice of plan to sell property concerning the vehicle. (FAC, ¶ 15.)

Plaintiff also includes allegations about BANA authorizing an order to cut a key for the vehicle and that Plaintiff went to the tow yard to retrieve belongings from the vehicle. (FAC, ¶¶ 21-22.)

Plaintiff alleges that on March 10, 2026, the Court ordered immediate release of Plaintiff's vehicle and that BANA did not appear at the hearing. (FAC, ¶ 23.)

Plaintiff alleges that the vehicle was not actually returned to Plaintiff until March 12, 2026. (FAC, ¶ 27.)

Plaintiff alleges that Defendants refused, withheld, ignored,

mishandled, or destroyed Plaintiff's payment-related submissions and then acted as if no valid dispute, tender, or presentment had been made. (FAC, ¶ 28.)

Defendants bring the instant demurrers targeted at the FAC.

LEGAL STANDARDS FOR DEMURRERS

Demurrer – Sufficiency

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirza, (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.)

In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, *supra*, 147 Cal.App.4th at 747.)

The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) “All that is required of a plaintiff, as a matter of pleading ... is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action.” (Rannard v. Lockheed Aircraft Corp. (1945) 26 Cal.2d 149, 156-157.)

On demurrer, a trial court has an independent duty to “determine whether or not the ... complaint alleges facts sufficient to state a cause of

action under any legal theory.” (Das v. Bank of America, N.A. (2010) 186 Cal.App.4th 727, 734.) Demurrers do not lie as to only parts of causes of action, where some valid claim is alleged but “must dispose of an entire cause of action to be sustained.” (Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119.) “Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

Demurrer – Uncertainty

A special demurrer for uncertainty, CCP section 430.10(f), is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

TENTATIVE RULING

Preliminary

On many occasions, both parties' arguments fail to stay on point and often cite to inapposite authority.

Further, Defendants put forward an extensive number of arguments that are outside the scope of the pleading stage by attempting to resolve factual disputes.

Additionally, on several occasions Defendants cite to non-binding federal cases and cases that the Court cannot find.

First Cause of Action

Plaintiff's FAC labels the first cause of action as a claim for Conversion and Wrongful Possession of Vehicle.

Plaintiff's first cause of action alleges:

32. Plaintiff

had ownership of and the right to possess the vehicle.

33. Defendants

wrongfully exercised dominion and control over the vehicle by causing it to be repossessed and withheld.

34. Plaintiff

alleges Defendants lacked a lawful present right to possess the vehicle because they proceeded despite unresolved disputes, Plaintiff's extension request, and defects in the post-repossession process.

35.

Defendants' repossession and detention of the vehicle caused Plaintiff damages, including loss of use, out-of-pocket losses, emotional distress, and related credit and financial harm

(FAC, ¶¶ 32-35.)

Defendants demur to the conversion claim on the basis of failure to state sufficient facts and uncertainty.

The

elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property, (2) the defendant's conversion by a wrongful act or disposition of property rights, and (3) damages. (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1405 quoting *Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066.)

Here, Plaintiff successfully pleads facts sufficient to state a cause of action for conversion.

The first element [the plaintiff's ownership or right to possession of the property] of Plaintiff's conversion claim is alleged in paragraph 32 of the FAC.

The second element [the defendant's conversion by a wrongful act or disposition of property rights] of Plaintiff's conversion claim is alleged in paragraphs 33-34 of the FAC.

The third element [damages] of Plaintiff's conversion claim is alleged in paragraph 35 of the FAC.

Defendants argue Plaintiff's conversion claim is not successfully pled because it does not allege any specific acts committed by particular Defendants. Defendants argue that the conversion claim doesn't differentiate between each of the three Defendants and instead lumps the Defendants into a singular group.

The Court does not find Defendants' arguments availing.

To support Defendants' argument – that Plaintiff must allege specific acts as to each defendant, instead of generally alleging the claim against all Defendants – Defendants cite to *Fortaleza v. PNC Fin. Servs. Group, Inc.*, 642 F. Supp. 2d 1012, 1022-1023 (2009) and *Zhang Xudong v. Flecke*, No. CV172876CASRAOX, 2017 WL 4179872, at *9 (C.D. Cal. Sept. 18, 2017).

First, *Fortaleza* is not binding on this Court because it is a federal case.

Second, the sentence in *Fortaleza* that states that the plaintiff's conversion claim fails because plaintiff did not allege any specific act against any specific defendant, did not cite to authority to support that pleading standard. (See *Fortaleza v. PNC Fin. Servs. Group, Inc.*, 642 F. Supp. 2d 1012, 1022.)

Third, not only is *Zhang Xudong* a federal district court case, but it is not a reported case.

Additionally, the Court notes that Defendants make several arguments on all the things that Plaintiff allegedly should have pled, but Defendants provide no legal authority to support those arguments.

Further, Defendants make an extensive number of arguments that appear to be disputing factual issues that are outside the scope of a demurrer hearing, and many of those arguments are unclear to the Court.

Tentative

Ruling – First Cause of Action

Defendants'

demurrer directed at the first cause of action, made pursuant to CCP §§ 430.10(e) & (f), is OVERRULED.

Second Cause
of Action

Plaintiff's FAC labels the second cause of action as a claim for Violation of California Civil Code section 2983.2 and California Commercial Code sections 9611, 9613, 3603(b), and 9614.

Plaintiff's second cause of action is brought against Bank of America, and it alleges:

36. California Civil Code section 2983.2 requires a proper post-repossession notice and gives the debtor the right to request a 10-day extension.

37. California Commercial Code sections 9611, 9613, and 9614 require proper notification before disposition of consumer-goods collateral and specify the required contents of that notice.

38. Bank of America sent a Defective Notice of Plan to Sell Property. Plaintiff sent a written 10-day extension request after receiving that notice.

39. Bank of America failed to properly honor, disclose, or address Plaintiff's extension request and otherwise failed to comply with the applicable post-repossession notice requirements,

40. As a result, Plaintiff was damaged and Bank of America's right to proceed with disposition and related collection conduct was impaired or defeated.

(FAC, ¶¶

36-40.)

Defendants demur to the second cause of action on the basis of failure to state sufficient facts and uncertainty.

Tentative Ruling – Second Cause of Action

The Court will hear argument with respect to the second cause of action.

Neither party provides helpful arguments to the Court with respect to the second cause of action.

For example, neither party cites to legal authority that explains what the legal standard is to sufficiently allege a cause of action for violation of each statute cited in Plaintiff's second cause of action.

Defendants cite to the general rule that statutory causes of action must be pleaded with particularity (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790), but other than that, the parties' papers don't shed light on what the pleading standard is for each statutory violation at issue in the second cause of action.

Neither party brought up the instant issue, but the Court would like Plaintiff to address the following question at the hearing: why did Plaintiff bring all of the alleged statutory violations in the second cause of action as a single cause of action?

As a practical matter, Plaintiff including several different statutory violations within one cause of action appears to be a problem for the Court because the Court is not entirely clear what it should do if Plaintiff successfully alleges a claim for violation of one statute but fails to successfully allege a violation of any of the other statutes.

Plaintiff's FAC labels the second cause of action as a claim for Violation of California Civil Code section 2983.2 and California Commercial Code sections 9611, 9613, 3603(b), and 9614.

Of the five statutory sections that Plaintiff's second cause of action cites as a basis for its second cause of action, Com. Code § 3603(b) is

the only statute in which Plaintiff's FAC references a subdivision within the statutory section.

The other four statutory sections cited for the second cause of action – Civ. Code § 2983.2, Com. Code §§ 9611, 9613, and 9614 – Plaintiff does not cite to the subdivisions, nor the paragraphs within the subdivisions, in which Plaintiff is basing her violations. All of the four aforementioned statutory sections contain several subdivisions and paragraphs (within the subdivisions) cited in the FAC.

With respect to Civ. Code § 2983.2, Plaintiff's FAC does not indicate which subdivision and paragraph is applicable with respect to violation of 2983.2.

Based on the allegations in ¶¶ 36-39 of the FAC, it appears that Plaintiff successfully alleges a violation of Civ. Code § 2983.2(a)(6) based on the alleged failure to extend the redemption period; however, the Court notes that the FAC does not explicitly mention that 2983.2(a)(6) is the violation being alleged in the second cause of action.

Under Civ. Code § 2983.2(a)(6):

States

the seller's or holder's intent to dispose of the motor vehicle upon the expiration of 15 days from the date of giving or mailing the notice, or if by mail and either the place of deposit in the mail or the place of address is outside of this state, the period shall be 20 days instead of 15 days, and further, that upon written request to extend the redemption period and any applicable reinstatement period for 10 days, the seller or holder shall without further notice extend the period accordingly.

(Civ. Code, § 2983.2(a)(6).)

Plaintiff's second cause of action is brought against Bank of America, and it alleges:

36. California Civil Code section

2983.2 requires a proper post-repossession notice and gives the debtor the right to request a 10-day extension.

37. California Commercial Code

sections 9611, 9613, and 9614 require proper notification before disposition of consumer-goods collateral and specify the required contents of that notice.

38. Bank of America sent a Defective

Notice of Plan to Sell Property. Plaintiff sent a written 10-day extension request after receiving that notice.

39. Bank of America failed to

properly honor, disclose, or address Plaintiff's extension request and otherwise failed to comply with the applicable post-repossession notice requirements,

40. As a result, Plaintiff was

damaged and Bank of America's right to proceed with disposition and related collection conduct was impaired or defeated.

(FAC, ¶¶
36-40.)

Thus, it

appears that Plaintiff successfully pleads a violation of Civ. Code § 2983.2 based on the allegations in ¶¶ 36-39 of the FAC because Plaintiff pleads that Bank of America failed to provide the extension.

Problematic

here is that other than Civ. Code § 2983.2, the Court fails to see how Plaintiff successfully alleges violations of Com. Code §§ 9611, 9613, 3603(b), and 9614.

With respect to

Com. Code § 3603(b):

If tender of payment of an

obligation to pay an instrument is made to a person entitled to enforce the instrument and the tender is refused, there is discharge, to the extent of the amount of the tender, of the obligation of an indorser or accommodation party having a right of recourse with respect to the obligation to which the tender relates.

(Com. Code, §
3603(b).)

The Court fails
to see how ¶¶ 36-40 of the second cause of action alleges a violation of Com.
Code § 3603(b). In particular, nowhere in ¶¶ 36-40 does Plaintiff allege
tender. Further, Plaintiff does not incorporate any of the general allegations
in the FAC into the second cause of action.

Further, with
respect to Com. Code §§ 9611, 9613, and 9614, all of those sections have
several subdivisions and paragraphs, and the Court has no idea what conduct in
¶¶ 36-40 are supposed to be violations of
9611, 9613, and 9614.

The Court will hear argument for
several reasons.

First, the
Court is left in a difficult position when neither party provides legal
authority on what the pleading standard is for the statutory violations at
issue in the second cause of action.

Second, what
should the Court do if it determines that Plaintiff successfully alleged a
violation of Civ. Code § 2983.2, but Plaintiff failed to successfully allege a
violation of the other four statutory sections in the second cause of action?

Third, the
Court is considering sustaining the demurrer to the second cause of action on
grounds of uncertainty.

A special demurrer for uncertainty, CCP section 430.10(f), is
disfavored and will only be sustained where the pleading is so bad that
defendant cannot reasonably respond—i.e., cannot reasonably determine what
issues must be admitted or denied, or what counts or claims are
directed against him/her. (*Khoury v. Maly's of Calif., Inc.* (1993)
14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat
vague, “ambiguities can be clarified under modern discovery procedures.” (*Ibid.*)

Here, Civ. Code § 2983.2 and Com. Code §§ 9611, 9613, and 9614 are all lengthy statutory sections with several subdivisions, and paragraphs within the subdivisions. How can Defendants determine which subdivisions, and paragraphs within the subdivisions, Plaintiff is alleging Defendants violated when Plaintiff doesn't identify them?

Fourth, Plaintiff is to address why she didn't allege a new cause of action for each statutory violation.

As a practical matter, Plaintiff including several different statutory violations within one cause of action appears to be a problem for the Court because the Court is not entirely clear what it should do if Plaintiff successfully alleges a claim for violation of one statute but fails to successfully allege a violation of some of the other statutes in the same cause of action.

The Court will hear argument.

Third Cause
of Action

Plaintiff's FAC labels the third cause of action as a claim for Violation of the Rosenthal Fair Debt Collection Practices Act (California Civil Code section 1788.17 and related provisions).

Plaintiff's third cause of action alleges:

41.

California Civil Code section 1788.17 requires debt collectors collecting or attempting to collect consumer debt to comply with the incorporated federal debt-collection provisions.

42.

Defendants engaged in unfair, deceptive, and unlawful debt-collection conduct, including but not limited to repossessing the vehicle without a lawful present right to possession ignoring or failing to properly address Plaintiff's disputes and presentments, failing to properly honor Plaintiff's extension rights, continuing collection activity concerning the credit-card account despite unresolved disputes, and causing or allowing adverse collection and credit consequences.

43. As a

direct and proximate result of Defendants' conduct, Plaintiff suffered actual damages; including emotional distress, loss of property, credit harm, and other damages according to proof.

(FAC, ¶¶ 41-43.)

Defendants demur to the third cause of action on the basis of failure to state sufficient facts and uncertainty.

Tentative Ruling – Third Cause of Action

Both parties' arguments with respect to the third cause of action are borderline incomprehensible.

Plaintiff's third cause of action is for Violation of the Rosenthal Fair Debt Collection Practices Act (California Civil Code section 1788.17 and related provisions).

Under Civ. Code § 1788.17:

Notwithstanding

any other provision of this title, every debt collector collecting or attempting to collect a consumer debt shall comply with the provisions of Sections 1692b to 1692j, inclusive, of, and shall be subject to the remedies in Section 1692k of, Title 15 of the United States Code. However, subsection (11) of Section 1692e and Section 1692g shall not apply to any person specified in paragraphs (A) and (B) of subsection (6) of Section 1692a of Title 15 of the United States Code or that person's principal. The references to federal codes in this section refer to those codes as they read January 1, 2001.

(Civ. Code, § 1788.17.)

In relevant part of the third cause of action, Plaintiff alleges:

41.

California Civil Code section 1788.17 requires debt collectors collecting or attempting to collect consumer debt to comply with the incorporated federal debt-collection provisions.

42.

Defendants engaged in unfair, deceptive, and unlawful debt-collection conduct, including but not limited to repossessing the vehicle without a lawful present right to possession ignoring or failing to properly address Plaintiff's disputes and presentments, failing to properly honor Plaintiff's extension rights, continuing collection activity concerning the credit-card account despite unresolved disputes, and causing or allowing adverse collection and credit consequences.

(FAC, ¶¶
41-42.)

Here,
neither party explains what the pleading standard is for the third cause of action.

In the
Court's view, the Court has no idea how the allegations in ¶¶ 41 & 42 of the FAC state a claim for violation of Civ. Code § 1788.17 when 1788.17 appears to incorporate Sections 1692b to 1692j, of Title 15 of the United States Code, into Civ. Code § 1788.17.

Plaintiff's
third cause of action does not state what section(s) of the United States Code Defendants are violating to form the basis for Plaintiff's claim under Civ. Code § 1788.17.

The Court
to hear argument; however, the Court is inclined to SUSTAIN with LEAVE to AMEND Defendants' demurrer to the third cause of action. The Court fails to see how Plaintiff's third cause of action alleges facts sufficient to constitute a cause of action for Violation of Civ. Code § 1788.17.

Fourth Cause of Action

Plaintiff's FAC labels the fourth cause of action as a claim for
Violation of Title 15 United States Code section 1692f(6).

Plaintiff's fourth cause of action alleges:

49. Title 15 United States Code

section 1692f(6) prohibits taking or threatening non-judicial action to dispossess property where there is no present right to possession through an enforceable security interest.

50. Defendants caused or

participated in the non-judicial repossession of Plaintiff's vehicle.

51. Plaintiff alleges Defendants

lacked a present right to possession because the underlying debt and account status were disputed, payment-related submissions had been ignored or destroyed, the post-repossession notice and extension requirements were not properly followed, and Defendants otherwise lacked a lawful basis to proceed as they did.

52. Plaintiff suffered damages as a

result of that wrongful dispossession.

(FAC, ¶¶ 49-52.)

Defendants demur to fourth cause of action on the basis of failure to state sufficient facts and uncertainty.

Tentative Ruling – Fourth Cause of Action

The Court will hear argument for the reasons explained below.

Neither party brings up the following issue, but the Court wants the parties to address whether or not Plaintiff can bring a violation of federal law, here 15 U.S.C. § 1692f(6), in California state court.

While the Court is aware that a violation of Sections 1692b to 1692j of Title 15 of the United States Code serves as an underlying basis to bring a state law claim under Civ. Code § 1788.17, can a Plaintiff bring a claim in California state court for violation of the federal law claim on its own?

If Plaintiff can bring a claim for violation of 15 U.S.C. § 1692f(6) in California state court, then it appears that Plaintiff successfully alleges the claim.

Under 15 U.S.C. § 1692f(6):

A debt

collector may not use unfair or unconscionable means to collect or attempt to collect any debt. Without limiting the general application of the foregoing, the following conduct is a violation of this section:

(6)

Taking or threatening to take any nonjudicial action to effect dispossession or disablement of property if-

(A) there is no present right to possession of the property claimed as collateral through an enforceable security interest;

(B) there is no present intention to take possession of the property; or

(C) the property is exempt by law from such dispossession or disablement.

(15 U.S.C. § 1692f(6).)

Plaintiff's FAC alleges in relevant part:

50.

Defendants caused or participated in the non-judicial repossession of Plaintiff's vehicle.

51.

Plaintiff alleges Defendants lacked a present right to possession because the underlying debt and account status were disputed, payment-related submissions had been ignored or destroyed, the post-repossession notice and extension requirements were not properly followed, and Defendants otherwise lacked a lawful basis to proceed as they did.

(FAC, ¶¶ 50-51.)

Based on paragraphs 50-51 of the FAC, it appears that Plaintiff successfully alleges a claim under 15 U.S.C. § 1692f(6).

Defendants argue that this claim is vague and conclusory, but the Court does not find that argument availing.

Further, the Court to hear argument on which Defendants this claim is successfully alleged against.

The fourth cause of action is alleged against Loss and Prevention Services, Coastline Recovery Services, and “Bank of America to the extent applicable.”

Defendants’ demurrer argues that this claim cannot be brought against Defendant, BANA, because under the FDCPA, a creditor collecting debts on its own behalf is not a “debt collector.”

“Under the FDCPA, a creditor collecting debts on its own behalf is not a “debt collector”” (Afewerki v. Anaya Law Group (2017) 868 F.3d 771, 774, fn. 1 citing 15 U.S.C. § 1692a(6).)

Defendants’ reply states that Plaintiff’s opposition concedes that BANA is not a debt collector, and thus this claim should be dismissed as to BANA.

Problematic with Defendants’ reply asserting that Plaintiff conceded that BANA is not a debt collector is that Plaintiff’s opposition is incomprehensible; therefore, it is difficult to tell if Plaintiff is in fact conceding that this claim cannot be brought against BANA.

Therefore, at the hearing, the parties are to address which parties this claim is successfully alleged against.

If this federal violation can be brought in California state court, then it appears that Plaintiff successfully states facts sufficient to allege a cause of action for violation of 15 U.S.C. § 1692f(6). However, at the hearing, the parties need to address which Defendants this claim is successfully alleged against.

Fifth Cause
of Action

Plaintiff's FAC labels the fifth cause of action as a claim for Conversion of Payment Instruments and Related Funds.

Plaintiff's fifth cause of action alleges:

53. Plaintiff

sent presentments and payment-related instruments concerning the vehicle account and the credit-card account, including presentments on November 3, 2025, December 15, 2025, and January 5, 2026.

54. Bank

of America failed to properly credit, return, preserve, or lawfully process those items.

55. Bank

of America stated that the January 5, 2026 credit-card presentment had been destroyed.

56. By

refusing, withholding, destroying, or converting Plaintiff's payment-related instruments and related funds, Bank of America wrongfully exercised dominion and control over Plaintiff's property.

57. Plaintiff

was damaged thereby in an amount according to proof.

(FAC, ¶¶ 53-57.)

Defendants demur to the conversion claim on the basis of failure to state sufficient facts and uncertainty.

As

stated in *PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP*:

"A

cause of action for conversion requires allegations of plaintiff's ownership or right to possession of property; defendant's wrongful act toward or disposition of the property, interfering with plaintiff's possession; and damage to plaintiff. [Citation.] Money cannot be the subject of a cause of action for

conversion unless there is a specific, identifiable sum involved, such as where an agent accepts a sum of money to be paid to another and fails to make the payment. [Citation.]” (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1491, 49 Cal.Rptr.3d 227; see Haigler v. Donnelly (1941) 18 Cal.2d 674, 681, 117 P.2d 331; Fischer v. Machado (1996) 50 Cal.App.4th 1069, 1072–1074, 58 Cal.Rptr.2d 213 [sales agent liable for conversion of proceeds from consignment sale of farm products]; Software Design & Application, Ltd. v. Hoefer & Arnett, Inc. (1996) 49 Cal.App.4th 472, 485, 56 Cal.Rptr.2d 756 [“money cannot be the subject of a conversion action unless a specific sum capable of identification is involved.”].) A “generalized claim for money [is] not actionable as conversion.” (**525 Vu v. California Commerce Club, Inc. (1997) 58 Cal.App.4th 229, 235, 68 Cal.Rptr.2d 31; 5 Witkin, Summary of California Law (10th ed.2005), Torts, § 703, pp. 1026–1027.)

(PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP (2007) 150 Cal.App.4th 384, 395.)

Here, in paragraphs 53-57 of the FAC, Plaintiff states facts sufficient to constitute a cause of action for conversion.

Defendants argue that the vague reference to presentments and payment-related instruments are insufficient, but the Court does not find Defendants' argument availing.

Paragraph 53 identifies the exact dates of the presentments, and those sums are capable and specific enough of being identified. Further, page 10 in the FAC identifies the presentments on November 3, 2025, December 15, 2025, and January 5, 2026.

Further, Defendants' argument that Plaintiff consented to the taking and disposition of the property is unavailing because Plaintiff alleges that Bank of America failed to properly credit, return, preserve, or lawfully process those items. (See FAC, ¶ 54.)

Tentative Ruling – Fifth Cause of Action

Defendants' demurrer directed at the fifth cause of action, made pursuant to CCP §§ 430.10(e) & (f), is OVERRULED.

Sixth Cause of Action

Plaintiff's FAC labels the sixth cause of action as a claim for Violation of the Unfair Competition Law (Business and Professions Code sections 17200 and 17204).

Defendants demur to the sixth cause of action on the basis of failure to state sufficient facts and uncertainty.

Defendants argue that Plaintiff's claim fails because she does not allege that she lacks an adequate legal remedy against BANA.

Defendants argument is unavailing because Defendants do not cite any authority that states a Plaintiff must allege that he/she lacks an adequate legal remedy to state a UCL claim.

Defendants also argue that Plaintiff improperly seeks damages because the UCL only provides for equitable remedies.

Defendants' argument is unavailing because ¶ 64 of Plaintiff's UCL claim seeks restitution and injunctive relief.

Defendants also argue that Plaintiff fails to state a claim under the unlawful prong of the UCL because Plaintiff did not successfully allege any other substantive causes of action (causes of action 1-5 in the FAC).

“ ‘The “unlawful” practices prohibited by ... section 17200 are any practices forbidden by law, be it civil or criminal, federal, state, or municipal, statutory, regulatory, or court-made. [Citation.] It is not necessary that the predicate law provide for private civil enforcement. [Citation.] As our Supreme Court put it, section 17200 “borrows” violations of other laws and treats them as unlawful practices independently actionable under section 17200 et seq.’ ” (South Bay Chevrolet v. General Motors Acceptance Corp. (1999) 72 Cal.App.4th 861, 880 citing Hewlett v. Squaw Valley Ski Corp. (1997) 54 Cal.App.4th 499, 531-532.)

Defendants' argument – that

Plaintiff did not successfully allege a claim under the unlawful prong of the UCL because all of Plaintiffs' other causes of action fail (causes of action 1-5) – is unavailing because at the very least, Plaintiff successfully alleges a cause of action for the first and fifth causes of action.

At the very least,
Plaintiff successfully states facts sufficient to constitute a cause of action under the UCL under the unlawful prong.

Sixth Cause of Action –
Tentative Ruling

Defendants' demurrer
directed at the sixth cause of action, made pursuant to CCP §§ 430.10(e) & (f), is OVERRULED.

Request for Judicial Notice

Defendants request judicial
notice of a Retail Installment Sale Contract that Plaintiff allegedly executed and assigned to BANA on November 24, 2023.

Defendants' request for
judicial notice is granted; however, the truth of the matters therein are not deemed to be true.

Improper Sur-Reply by Plaintiff

Plaintiff appears to have submitted an improper sur-reply on 7/10/2026 which is a supplemental declaration by Plaintiff that submits new evidence. The Court has no idea why any of the information in Plaintiff's sur-reply/supplemental declaration submitted on 7/10/2026 and 7/21/2026 are relevant for the instant hearing. Both supplemental declarations appear to be entirely irrelevant to the matters implicated at this demurrer hearing.